

20STCV40733 20STCV40733

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-15
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Case Number: 20STCV40733 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SANTOS NOVOA,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC.,

Defendant.

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CASE NO.: 20STCV40733

[TENTATIVE] ORDER SUSTAINING DEMURRER; GRANTING
IN PART MOTION TO STRIKE

Dept. 506

8:30 a.m.

September 15, 2026

On

October 23, 2020, Plaintiff Santos Novoa filed this Song-Beverly action against
Defendant American Honda Motor Co., Inc.

On

February 10, 2026, the Court granted Defendant's motion for judgment on the pleadings
as to the fourth cause of action for Fraudulent Inducement – Concealment. Plaintiff then filed a first amended complaint
("FAC") on March 12, 2026.

On

April 14, 2026, Defendant filed a demurrer to the FAC and a motion to strike.

DISCUSSION

Plaintiff's

amendments in the FAC do not remedy the problems detailed in the Court's order granting
Defendant's prior motion for judgment on the pleadings. For the reasons stated in that order and in Defendant's
current demurrer, the demurrer is sustained.

Defendant

moves to strike Plaintiff's prayer for punitive damages. A plaintiff can recover punitive damages in tort cases where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]" (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) Additionally, a plaintiff is not entitled to recover both punitive damages and civil penalties under Song-Beverly. (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 228.) The Court concurrently sustains the demurrer to the fraud cause of action, and there are no other specific facts showing oppression or malice. The motion is granted for Page 27, line 18 "7. For punitive damages."

Defendant

also moves to strike Paragraphs 30-36 and 38. These allegations may still be relevant to Plaintiff's allegations of willfulness. (See FAC ¶¶ 112, 139.) The motion is denied for these items.

CONCLUSION

The demurrer is SUSTAINED.

The motion to strike is GRANTED IN PART as stated above.

Plaintiff's

Oppositions do not show what additional facts can be pleaded or how any amendments can remedy the deficiencies of the FAC without making it a sham pleading. Accordingly, no leave to amend is granted.

Defendant

is ordered to file an answer to the remainder of the FAC within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov

indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this
15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court